



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY
2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna
(049) 513-5063 / 513-5064



**ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION
HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING,
BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED MARCH 25, 2024.**

PRESENT:

- Hon. LIBUNERO O. ALATIIT
- Hon. ROMMEL R. DICDICAN
- Hon. FLAVIANO D. PECAÑA, JR.
- Hon. CHRISTOPHER A. ALBA
- Hon. JAYSON A. SOUZA
- Hon. VICTOR L. CARIÑO
- Hon. ELMARIO B. DIMARANAN
- Hon. RAFAEL L. CARDEÑO, JR.
- Hon. JOSE FRANCISCO RUBEN P. YATCO
- Hon. ALONZO KYNE S. GARCIA
- GERONIMO D. ROMANTIGUE, MDMG

- Acting City Vice Mayor / PDS Branch Officer
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- SK-Federation President
- City Council Secretary

GUESTS:

- Mr. Jaime M. Salandanan - Former Councilor
- Legislative Staff of the City Government of Biñan

ABSENT:

- Hon. ANGELO B. ALONTE - City Vice Mayor (Vacation Leave)
- Hon. JONALINA R. REYES - Councilor (Sick Leave)
- Hon. ALVIN Z. GARCIA - Councilor (Absent)
- Hon. ELVIS L. BEDIA - Councilor (Absent)
- Hon. GEMINIANO B. CATALON - ABC-Federation President (Absent)

CITY ORDINANCE NO. 5- (2024)

AN ORDINANCE DEFINING THE PROPER UTILIZATION OF JAIL FACILITIES, APPROPRIATING FUND THEREOF AND FOR OTHER PURPOSES.

Authored by: ROMMEL R. DICDICAN
Chairman, Committee on Police Matters, Public Welfare and

WHEREAS, Article 2, Section 5 of the 1987 Constitution of the Republic of the Philippines states that “The maintenance of peace and order, the protection of life, liberty, and property, and promotion of the general welfare are essential for the enjoyment by all the people of the blessings of democracy”;

WHEREAS, Article 8, Section 50 (a) – The City Jail Service of the Republic Act. No. 9740 also known as “AN ACT CONVERTING THE MUNICIPALITY OF BIÑAN IN THE PROVINCE OF LAGUNA INTO A COMPONENT CITY TO BE KNOWN AS THE CITY OF BIÑAN” provides that “There shall be established and maintained in the City a secured, clean, adequately equipped and sanitary jail for the custody and safekeeping of persons deprived of liberty, any fugitive from justice, or person detained awaiting investigation or trial and/or violent mentally ill person who endangers himself or the safety of others, duly certified as such by the proper medical health officer, pending the transfer to a mental institution”;

WHEREAS, The City of Binan in its commitment to uphold the basic rights of the persons deprived of liberty who are committed by the courts under the protection of the Bureau of Jail Management and Penology (BJMP);

WHEREAS, it is a paramount objective of the City government to lay down and establish a clearcut policies in the utilization of the jail facilities under the BJMP, an established agency tasked by law to safekeep, reform and rehabilitate persons deprived of liberty in their best effort possible;

NOW THEREFORE, BE IT ENACTED BY THE SANGGUNIANG PANLUNGSOD IN SESSION ASSEMBLED:

Section 1. Title of the Ordinance. This ordinance shall be known and cited as the “Ordinance Defining the proper utilization of Jail facilities”.

Section 2. Declaration of Policy and Principles. It is declared policy of the state to maintain peace and order, protect life, liberty and property, and promote the general welfare essential for the enjoyment by all the people of the blessings of democracy (Article II, Section 5 of the Philippine Constitution). Moreover it recognizes the responsibility of the city to strengthen government capability aimed towards the strengthening of the delivery of basic services to the citizenry though the institutionalization of highly efficient and competent jail services.

Section 3. Officials of the Biñan City Jail Facility. The city jail service shall be headed by city jail warden who shall be selected and qualified based on the provisions laid down in Republic Act No. 6975, Chapter 5, Sections 60-65. Great care must be exercised so that human rights of these prisoners are respected and protected, and their spiritual and physical well-being are properly and promptly attended to.

Section 4. Persons Deprived of Liberty (PDL) of the Biñan City Jail Facility. The Biñan City Jail Facility shall be exclusively designated for the detention of individuals who are residents of Biñan, as well as those whose alleged offenses were committed within the territorial jurisdiction of Biñan. Furthermore, this provision explicitly applies to individuals whose cases are currently under judgement in courts situated within the City of Biñan.

Section 5. The Oversight Committee. *In order to ensure effective implementation of the ordinance outlining the proper utilization and maintenance of city jail facilities, there shall be created an Oversight Committee composed of the following members:*

- a) The City Mayor, who shall serve as the Chairman of the committee.
- b) A representative from the City Local Government Operations Officer (CLGOO) office.
- c) The Chief of Police or their designated representative.
- d) A representative from the City Health Office 1 and 2.
- e) A representative from the Fiscal's Office.

The oversight committee shall meet regularly to oversee the implementation of the ordinance and shall have the following responsibilities:

- a) Monitor compliance with the provisions outlined in the ordinance regarding the utilization and maintenance of city jail facilities;
- b) Coordinate efforts among the various government agencies and offices involved in the management of city jail facilities;
- c) Review and evaluate the effectiveness of existing policies and procedures related to the utilization and maintenance of city jail facilities and recommend any necessary revisions or improvements;
- d) Address any issues or challenges that may arise in the implementation of the ordinance and take appropriate actions to resolve them.
- e) Provide regular updates and reports to the City Council on the progress and outcomes of the ordinance implementation.

Section 6. Maintenance of the Biñan City Jail Facility. *This ordinance prioritizes the effective utilization of rehabilitation facilities and it's PDL within jails. It mandates the Jail Warden, under the direct supervision of the Department of Interior and Local Government (DILG), to ensure the preservation and protection of these facilities. This includes implementing policies and procedures to maintain the facilities, safeguarding equipment and resources, and overseeing the proper use of rehabilitation programs for PDL's. Furthermore, the City Health Office shall collaborate with the Jail Warden to provide necessary medical and healthcare services to PDLs, ensuring their well-being and promoting public health within the facility.*

- a) Conduct routine (monthly) maintenance checks on water supply systems and ensure the availability of clean and potable water for PDL and staff. City Health Office, Sanitation Department will provide water treatment if the water testing will yield unfavorable results.
- b) Misting of the Facility will be conducted by the City Health Office, Sanitation Department upon request of the BJMP to reduce the risk of vector borne diseases such as Dengue fever, etc.
- c) Conduct health education programs for PDL and staff on the importance of maintaining a clean and safe environment for overall well-being.
- d) Proper sanitation facilities (Ex. Toilets) for PDL shall be inspected by the CHO, Sanitary Dept. to ensure proper waste disposal for preventing contamination of environment and reducing the risk of spreading disease to themselves and the neighboring community.
- e) Monitor and evaluate the effectiveness of maintenance and sanitation practices within the facility and recommend improvements as needed.
- f) Respond promptly to any environmental health-related complaints or concerns raised by PDLs, staff, or the community surrounding the facility, and take appropriate action to address them.
- g) *Conduct health assessments upon admission.*
- h) *Provide medical care and treatment for PDLs referred by the BJMP Including primary healthcare services and medication management.*

Section 7. Usufructuary. The land and any developments constructed thereon, including but not limited to buildings and facilities, owned by the Local Government of Biñan and designated for use as city jail facilities, shall be subject to a Usufructuary Contract with the City Government of Biñan, Laguna.

Section 8. Utilities. The City Government of Biñan, in accordance with existing laws shall provide appropriate funds to provide *essential utilities, including but not limited to: electricity, water, gas and necessary repairs for the operation of BJMP facilities.*

Section 9. Consistency with the BJMP Mandate. *In the formulation and implementation of this Ordinance, there shall be no prejudice against the provisions stipulated in the BJMP Comprehensive Operations Manual 2015 Edition. The mandate of the BJMP, as stated in Republic*

Act No. 6975, shall be duly recognized and respected. Specifically, the BJMP exercises administrative and operational jurisdiction over all district, city, and municipal jails. It is imperative that the ordinance aligns with this mandate to ensure the effective and lawful management of jail facilities within the city.

Section 10. Proper Utilization and rehabilitation of Jail Facilities. All jail officials/personnel are advised to adhere to the BJMP's Rehabilitation Facilities Plan, which states that: Rehabilitation facilities in the jail shall be utilized appropriately. The use of the ground and facilities of the jail other than for the jail activities must be subject to the approval of the Jails Warden. Among other activities and utilization of the jail grounds and facilities which may be permitted by the Jails Warden are as follows:

- a) Proper Utilization of Rehabilitation Facilities in Jails
- b) Literacy Classes. Instruction of illiterates and other literacy activities may be held in the jail.
- c) Religious Services/Instruction. Holding of religious activities for the benefit of PDL and other sectoral groups and conduct of religious instructions maybe allowed provided such does not interfere with regular jail activities.
- d) Livelihood programs and recreational activities.

Section 11. Duties and Responsibilities of the Jail Warden in the protection and rehabilitation of Jail Facilities.

Section 11.1 It is the duty of the jail warden to enforce the rules on proper care of rehabilitation facilities such as:

- a) Preservation of perimeter fence along boundaries of the jail site with secured entrance and exit gates.
- b) Proper utilization of jail buildings, including undertaking of minor repair and maintenance work.
- c) Cleanliness and orderliness of facilities shall be maintained at all times.
- d) Proper use of office desks, furniture shall be strictly enforced by the Warden. Tools/equipment and supplies such as computers, books, magazines, periodicals, journals, bulletins and other publications issued by the Department or procured from various sources shall be displayed and kept in safe shelves/storage areas.
- e) Maintaining Jail Records on Facilities

Section 11.2. The jail shall have a file on facilities for ready reference. This is beneficial on the part of the jail Warden for monitoring purposes. The following documents shall be placed in separate folder under the Physical Facilities MIS:

- a.) Jail Site Ownership Documents
- b.) Jail Site Development Plan
- c.) Jail Site/Building Cards
- d.) Inventory of all Facilities
- e.) Jail Furniture Record
- f.) Record of Jail Building Repair – Program of Works (POW)
- g.) Record of Jail Building Construction – POW
- h.) Records of Fire Damage Reports (if any)

Section 12. Funding – The Sangguniang Panlungsod shall appropriate the amount of Two Hundred Thousand Pesos (P200,000.00) for the initial funding of this ordinance. Funds will be taken under the General Fund (Mayor's Office).

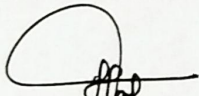
Section 13. Separability Clause. If for any reason/s, any provision of this Ordinance is declared unconstitutional and or illegal, the remainder of this Ordinance shall not be affected and shall therefore, be in full force and effect.

Section 14. Repealing Clause. Local ordinances, resolutions, orders, rules and regulations that are inconsistent with this Ordinance are hereby repealed, modified, or amended accordingly.

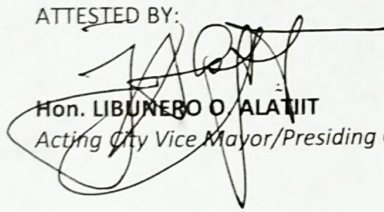
Section 15. Effectivity Clause. This Ordinance shall take effect upon approval and compliance with the publication requirements.

UNANIMOUSLY APPROVED.

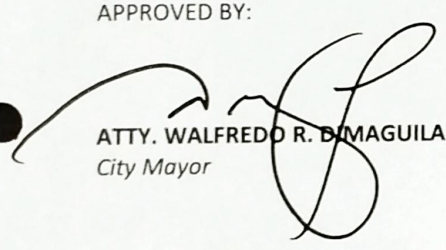
CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:


Hon. LIBUNERO O. ALATIIT
Acting City Vice Mayor/Presiding Officer

APPROVED BY:


ATTY. WALFREDO R. DIMAGUILA JR.
City Mayor